

THE JURY AND THE CITIZEN



Citizen, if you are summoned for service there is no need for you to panic.

REMEMBER

- Jury Service offers you the opportunity to participate in the administration of justice in your country.
- Jury Service is a service which cannot be valued in terms of money.
- Jury Service is the duty of every good citizen.
- Jury Service does not mean you are going to sentence anybody to prison or to hang. It means you are being asked to determine guilt or innocence. Sentence is for judge.
- Jury Service reasoning together 7 or 12 of you arriving at a common decision.
- Jury Service ensures a good quality of justice because the Juror is best able, from his knowledge of his own countrymen, to say when a man is speaking the truth or not.
- The availability of sufficient jurors ensures a speedier system of justice and so, less time spent by people in custody.
- Jury Service is something to preserve. The state, the accused and the victim place confidence in your hands and ask you to give justice. Justice is giving every man his due. If you are chosen to do that, it is a great honour.

WHO CAN BE CHOSEN AS A JUROR?

Every citizen between the ages of 18-70 is liable to be chosen.

However, certain categories of persons are legally disqualified. Some of those who cannot become jurors are:

- People who cannot speak and write English:
- People who have been convicted of criminal offences and sentenced to prison for six months or more;
- People belonging to certain occupational groups e.g. doctors, attorneys-at-law and some civil servant.

CAN YOU BE EXCUSED FROM JURY DUTY?

The answer is yes, if you are ill or have some good reason why you cannot serve as a juror.

If you are summoned and you think you have good reason, then write to the Judge c/o the Clerk of Courts or the Registrar of the Supreme Court and say why you wish to be excused.

The Judge will consider your request and if he/she is satisfied you have good reason he/she will excuse you.

WHAT DO YOU DO AFTER YOU GET A SUMMONS?

Make sure you turn up at the court on the day and hour stated on the summons.

When you get there you will get further instructions.

If you are employed your employer must give you, the employee, time-off to attend.

He cannot terminate your employment because you have to serve as a Juror.

WHAT HAPPENS IF YOU ARE CHOSEN TO SERVE AS A JUROR IN A TRIAL?

- You will be asked to take an oath or, if you for any reason object to taking an oath, you will be asked to affirm that you will try the case fairly.
- There will be several of you (12 in a murder case, 7 in others) and you will be asked to choose one of your members as foreman. This person can be male or female.
- The Judge will speak to you and tell you what is expected of you. He will tell you among other things that:
 - You are the sole judges of the facts-in other words, you and you only will decide what are the facts on which you will make a decision;
 - You must not discuss the case with any other person except your fellow jurors;
 - You must decide the case on the basis of what you hear in court only.

The trial will begin. You will see the accused in the dock, the Judge in his robe, and lawyers in their gowns.

- This form of dress is designed to give dignity to the court and is in the tradition of the court.
- You will hear witnesses testify as to what they know.
- Pay special attention to what they say and how they say it.
- Study and observe the demeanour and behaviour of the witnesses. It will help you to determine what facts you find.
- The attorneys will address you after the witness and the accused have given evidence.
- The defence attorney will emphasize the weaknesses in the Crown's case and will put his client's case as best as he can.
- Please listen to him. He is doing his duty.
- The attorney for the Crown will emphasize the strength of the Crown's case. He too is doing his duty-he has nothing personal against the accused.
- In all of this, keep a steady head and a clear mind, if you feel you have heard enough for the day and you are losing attention; tell the Judge you want to continue on another day.
- Remember it is you, the juror, who are going to decide the matter.
- Finally, the Judge will sum up. This summing up is designed to assist you. The Judge will remind you of the facts as given in the evidence and tell you how the law is applied to these facts. You take the law from the Judge as he tells you. Listen to the *Judge* very carefully. If you do not understand anything he says, tell your foreman who will ask him to explain.

- After the Judge has done his summing up, he will ask you to retire and consider the evidence, that is, everything which you heard which the Judge tells you is relevant to the case.
- All of you will go into a room. Only the jurors can be in the room. You will discuss the case among yourselves and come to a decision. If you cannot all agree you can request to be taken back into the Court and through your Foreman ask the Judge for further directions on any point, which may be causing a problem.
- If despite all your efforts you cannot arrive at a decision acceptable to all of you and having informed the Judge, he will also direct you as to what majority decision he can accept.

THE JURORS AT A CORONER'S INQUEST

There are times when you may be summoned to serve as a juror in Coroner's inquests. This is an enquiry into the circumstances under which a particular person died and the cause of death.

This enquiry is heard in the Resident Magistrate's Court then called the Coroner's Court and is presided over by the Resident Magistrate then called a Coroner.

At the hearing in a Coroner's inquest no one is charged with any offence so you will not see any accused in the dock. Evidence however will be presented and the Coroner will sum-up reviewing the facts and explaining the application of the law. The Coroner will tell you your duty which is to determine the cause of death of the person and although no one is charged, if you are of the view, based on the evidence, that someone is criminally responsible, you say so.

If the person whom you believe is criminally responsible is known then you are required to name the person.

The consequence of your naming the person is that this person named may be charged with the relevant criminal offence.

REMEMBER ALSO

- When you are a juror nobody should approach you out of court to discuss the case with you. If anyone attempts to do this, you should inform the Judge or the police.
- Nobody should in any way seek to bear any influence upon you as to what verdict you should give. No relative or friend of the person being tried should approach you to say anything to you.
- Nobody has any right to ask you what was said in the jury room by anyone when you have already considered the verdict.
- Nobody should threaten you or intimidate you in any way when you are a juror. If anyone does, he/she could go to prison for a long time. You are also protected from threats or violence after the case. The State has an obligation to protect citizens who serve as jurors.

So now you understand what the jury service is about. You will agree that it is honourable service to the country.

Do it if you are asked.